

Terms and conditions

Deriv Content Creators Challenge

Version 2

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Table of contents

1. The Competition	3
2. Definitions	3
3. Eligibility	4
4. Registration, entry, and deadlines	5
5. Content requirements	5
6. Compliance requirements	6
7. Judging	7
8. Prizes	7
9. Intellectual property	8
10. Personal data	9
11. Disqualification	10
12. Changes, suspension, and cancellation	10
13. Limitation of liability	11
14. Relationship with the Business Partners' Terms	11
15. Third-party platforms and trademarks	11
16. General	12
17. Governing law	12
18. Contact	12
Schedule 1 - Restricted Territories	13
Schedule 2 - Judging rubric	14
Schedule 3 - Mandatory risk warning	15

Deriv Content Creators Challenge

1. The Competition

- 1.1. The Deriv Content Creators Challenge (the "**Competition**") is organised by Deriv Capital International Ltd, a company registered in Samoa with its registered office at Unit 25, 2nd Floor, Nia Mall, Saleufi Street, Apia, Samoa ("**Deriv**", "**we**", "**us**").
- 1.2. The Competition invites eligible Deriv partners to produce and publish original educational video content about accessing and using TradingView charts through Deriv.
- 1.3. The Competition is a competition of skill. Winners are selected by a panel of Deriv judges on the merit of their entry. No element of chance determines the outcome.
- 1.4. Entry is free. No purchase, paid subscription, deposit, live trade, or payment to Deriv or TradingView is required to enter or win. An Entrant may use the free tools and demonstration methods specified in the Competition Guidelines. Ordinary internet and production costs are the Entrant's responsibility. Paying for tools or subscriptions does not improve an Entry's score or prospects of winning.

2. Definitions

- 2.1. "**Approved Platform Materials**" means the specific TradingView or other platform materials that Deriv identifies in the Competition Guidelines as cleared for the stated entry and reuse activities, together with the conditions and limits of that clearance.
- 2.2. "**Competition Guidelines**" means the dated and versioned production and submission instructions linked from the Competition Page before the Start Date, including the permitted demonstrations, disclosures, and rights requirements. Changes are governed by Clause 12.1.
- 2.3. "**Competition Page**" means the official Deriv webpage for the Competition at [URL], where the Competition dates, entry instructions, prizes, and other practical information are published.
- 2.4. "**Entrant**" means a Partner whose participation in the Competition has been accepted by Deriv after the Partner submits an Entry through the Submission Channel.
- 2.5. "**Entry**" means a Video submitted through the Submission Channel in accordance with Clause 4.
- 2.6. "**Immediate Family Member**" means, in relation to a person, their spouse, civil partner, parent, stepparent, child, stepchild, sibling, grandparent, or grandchild, including adoptive relationships, or anyone who lives in the same household as that person.
- 2.7. "**Panel**" means the group of internal Deriv judges appointed by Deriv to assess eligible Entries in accordance with the Rubric.

- 2.8. **“Partner”** means a person holding a current Deriv partner or affiliate account in good standing, with a valid partner ID.
- 2.9. **“Partner App”** means Deriv’s online platform for Partners, available at <https://home.deriv.com/partners-app>.
- 2.10. **“Restricted Territory”** means a territory listed at Schedule 1.
- 2.11. **“Rubric”** means the judging criteria and weightings set out at Schedule 2.
- 2.12. **“Start Date”** means the date on which the Competition opens, as stated on the Competition Page.
- 2.13. **“Submission Channel”** means the Submission Form or, where available, Amy through the Partner App.
- 2.14. **“Submission Confirmation”** means a confirmation issued through the Submission Channel that an Entry has been received and recorded against the Entrant’s Partner ID.
- 2.15. **“Submission Deadline”** means the date and time by which an Entry must be submitted, as stated on the Competition Page.
- 2.16. **“Submission Form”** means the Google Form issued by Deriv to eligible Partners through its Competition communications, through which a Partner may submit an Entry and confirm their acceptance of these terms.
- 2.17. **“Third-Party Materials”** means material in a Video in which rights belong to someone other than the Entrant, including platform interfaces, charts, data, trademarks, scripts, indicators, publications, music, images, and recordings.
- 2.18. **“Video”** means the audiovisual content produced by an entrant and published on YouTube.
- 2.19. **“Winner Announcement Date”** means the date on which Deriv intends to announce the winners, as stated on the Competition Page.

3. Eligibility

- 3.1. Only Deriv Partners may enter the Competition. An Entry submitted by anyone who is not a Deriv Partner at the time of submission will not be judged.
- 3.2. An Entrant must be aged 18 or over when submitting an Entry.
- 3.3. The Competition is not open to Partners residing in the European Union, the European Economic Area, the United Kingdom, the United Arab Emirates, or any Restricted Territory listed in Schedule 1, and no Entry may be directed at audiences in any of those jurisdictions.
- 3.4. Where Deriv reasonably believes that an Entry may be directed at audiences in a territory excluded under clause 3.3, Deriv may require the Entrant to provide channel analytics. Deriv may reject the Entry if the Entrant does not provide the requested analytics or if they indicate that the Entry is directed at such audiences.

- 3.5. The following may not enter the Competition: employees, officers, and contractors of Deriv or any of its group companies; their Immediate Family Members; members of the Panel; and anyone who submits, as their own, content produced for or on behalf of another person.
- 3.6. A Partner is not eligible if their Deriv Partner account is suspended or under investigation, or if they are in breach of the Deriv [Business Partners' Terms](#).
- 3.7. A Partner becomes an Entrant only after they have submitted the public URL of a Video through the Submission Channel by the Submission Deadline, confirmed their acceptance of these terms, and Deriv has accepted their participation in the Competition. A Submission Confirmation confirms receipt only and does not mean that Deriv has accepted the Partner as an Entrant or accepted the Entry as eligible.
- 3.8. Deriv may verify an Entrant's identity, country of residence, Partner status, and compliance with any other eligibility requirement at any time, including before awarding or paying a prize. Deriv may reject or disqualify an Entry if any required information cannot be verified or if the Entrant is found not to be eligible.

4. Registration, entry, and deadlines

- 4.1. To enter the Competition, a Partner must provide the public URL of the Video through the Submission Channel. When using the Submission Form, the Partner must confirm their acceptance of these terms by selecting the required checkbox. When submitting through Amy, the Partner must explicitly confirm their acceptance before the submission is completed. Before completing submission, the Partner must affirmatively accept the identified version of these terms and provide the AI declaration required by Clause 9.6. The Partner must identify any Third-Party Materials other than Approved Platform Materials, state any restrictions on their use, and confirm that the permissions required by Clause 9.3 are in place. Deriv may request evidence of those permissions and a copy of the submitted Video for verification and authorised reuse.
- 4.2. Entries may be submitted from the Start Date until the Submission Deadline.
- 4.3. A Video is submitted as an Entry only when its public URL has been provided through the Submission Channel by the Submission Deadline, and a Submission Confirmation has been issued. A Video URL provided by email, social media, or any other method does not constitute an Entry and will not be judged. The Submission Confirmation will identify the submitted Video URL, the Partner ID, the receipt date and time, and the version of these terms accepted. A published Video, a chat enquiry, or an acknowledgement of a link without acceptance of these terms does not by itself grant Deriv the licence in Clause 9.2.
- 4.4. An Entrant may submit more than one distinct Entry, either together or separately, through the Submission Channel by the Submission Deadline. All Entries submitted by the same Entrant will be recorded against the same Partner ID. Each distinct eligible Entry will be judged separately. Re-cuts, re-uploads, and substantially similar versions of the same Video count as one Entry, and Deriv may decide which version to judge.
- 4.5. An Entrant may receive no more than one prize. Clause 8.3 explains how any additional prize is reallocated.
- 4.6. Each Video must be original work created for the Competition and first published on or after the Start Date. A Video published before the Start Date is not eligible.

- 4.7. A Partner must submit each Entry using the details associated with their own Partner account. An Entry submitted jointly, through another person's account, or by an agency or intermediary will be rejected.
- 4.8. Each Entrant is responsible for all costs incurred in producing, publishing, and submitting an Entry. Deriv will not reimburse those costs, whether or not the Competition is amended, suspended, or cancelled.

5. Content requirements

- 5.1. **Subject matter.** Each Video must provide educational content about accessing, analysing, or trading Deriv markets on TradingView. Deriv may suggest topics in the Competition email or through Amy, but these are examples only and do not restrict the subject of a Video that otherwise meets this requirement. Suggested topics, examples, and third-party educational material do not override Clause 6. A Video may explain platform mechanics and general risk-management concepts, but must not turn those explanations into a recommendation or signal to make a particular trade.
- 5.2. **Platform.** Each Video must be published on YouTube and accessible to the Panel through the submitted URL. It must not be private or unlisted. An Entrant must use any age or territorial restrictions required by applicable law, platform rules, or these terms and must not disable a required restriction to facilitate judging. If a required restriction prevents the Panel from viewing the Video, the Entrant must contact Deriv before the Submission Deadline for an approved review method. Publication elsewhere is optional and must comply with the relevant platform rules. An Entrant must not publish or promote a Competition Entry on TradingView unless Deriv has issued campaign-specific written instructions confirming TradingView's permission for that activity. Only the submitted YouTube version will be judged.
- 5.3. **Visibility and accuracy.** Each Video must show the use of TradingView charts with a Deriv instrument identified in the Competition Guidelines for a meaningful part of the Video. Where the Video shows a broker connection, it must accurately identify the broker and relevant account context. A Video must not imply that a chart-only view provides execution, that a TradingView account is a Deriv brokerage account, or that an instrument or feature is available through a Deriv entity or in a territory where it is not. A passing reference, a description-only reference, or an appearance only in the closing seconds is insufficient.
- 5.4. **Length and production.** Each Video must be at least 30 seconds long. There is no maximum length. Production methods may include screen recordings and phone recordings, subject to the Competition Guidelines and Clause 6. Record only the screens and content permitted for the Competition, and remove material that would breach these terms before publication.
- 5.5. **Language.** A Video may be produced in any language. Any spoken or on-screen content that is not in English must include accurate English captions or transcripts sufficient for the Panel to understand and judge the Video.
- 5.6. **Availability.** Each Video must remain published and accessible in accordance with Clause 5.2 for 90 days from its Submission Confirmation. This requirement does not apply to removal, restriction, or amendment required by Deriv, an applicable law, or a platform or a valid rights-holder request. The Entrant must notify Deriv promptly of any such action and provide relevant evidence. Deriv may request a compliant replacement or an approved copy for judging. An Entrant will not be disqualified, or lose an otherwise properly earned prize, solely for complying with such a requirement where they did not cause the underlying issue by breaching these terms.

This exception does not excuse an underlying breach or guarantee that an Entry which cannot be assessed will receive a prize.

- 5.7. **Description.** The Video description must include the mandatory risk warning set out in Schedule 3, the disclosure required by Clause 6.6, and, where applicable, the disclosure required by Clause 9.4. The description must also contain the attribution and approved links required by the Competition Guidelines.

6. Compliance requirements

- 6.1. **Risk warning.** Each Video must include the mandatory risk warning set out in Schedule 3, both clearly on screen and in the Video description.
- 6.2. **Prohibited claims.** A Video must not state or imply:
- 6.2.1. That profits or returns are guaranteed, assured, or predictable;
 - 6.2.2. That trading is risk-free, safe, or low risk;
 - 6.2.3. That a specific income, salary, or lifestyle can be achieved through trading;
 - 6.2.4. That past, simulated, or hypothetical performance indicates future results; or
 - 6.2.5. That loss can be recovered through further trading.
- 6.3. **No advice or signals.** A Video may explain general trading strategies or demonstrate how platform features work. It must not contain personalised recommendations, real-time trade signals, calls to enter or exit a particular trade, copy-trading invitations, or content presented as investment advice.
- 6.4. **No results.** A Video must not display any real, simulated, or fabricated account balance, profit or loss figure, account statement, or trade history, whether belonging to the Entrant or another person.
- 6.5. **Audience.** A Video must not be directed at persons under 18 or at audiences in any territory excluded under Clause 3.3. In determining whether a Video is directed at a territory, Deriv may consider the Video and the channel as a whole, including their language, currency, references to local payment methods, territory-specific content, and channel analytics. A Video must not use vulnerable-audience framing, including debt relief, escaping poverty, financial urgency, or get-rich messaging.
- 6.6. **Disclosure.** Each Video must clearly disclose that the Entrant is a Deriv Partner and that the Video is an Entry in the Competition. The disclosure must appear on screen and within the first two lines of the Video description, in a form that viewers can easily notice and understand.
- 6.7. **Third-party rights and attribution.** Third-Party Materials may be included only where permitted for their intended use. Entrants must comply with the Competition Guidelines and the relevant rights-holder conditions. TradingView attribution must remain clearly visible while its charts or products appear. If native attribution is absent, add “Charts by TradingView” or another accurate approved credit, at least 10 pt/13 px and readily readable at normal playback size. Do not crop, obscure, or alter required credits or notices. Preserve required

widget attribution. Other rights-holder conditions continue to apply; credit alone is not permission. No Video may imply third-party sponsorship or endorsement beyond the role confirmed under Clause 15.2.

- 6.8. **Deriv's rights.** Deriv may require an Entrant to amend or remove a Video at any time if, in Deriv's reasonable opinion, it breaches this Clause 6, any applicable law or regulation, or a third party's rights; may damage Deriv's reputation; or must be amended or removed at TradingView's request. The Entrant must comply within 48 hours of notice, or within a shorter reasonable period identified in the notice where necessary to address an urgent legal, security or rights issue. Deriv will identify the material and action required. Deriv will also stop, amend, or remove its own affected uses and instruct recipients using the material under its authority to do so where required. The exception in Clause 5.6 applies to required action. An Entrant must notify Deriv promptly of any claim, warning, strike, or permission change affecting the Video or its authorised reuse.
- 6.9. **Independent responsibility.** Nothing in this Clause 6 constitutes legal or regulatory advice to an Entrant. Each Entrant is responsible for ensuring that their Video and its publication comply with all applicable laws and regulations, the Deriv [Business Partners' Terms](#), and the terms and policies of YouTube, TradingView, and any other platform on which the Video is published.
- 6.10. **Demonstrations and confidential information.** Use an approved demonstration environment where available. Do not place a live trade solely to produce an Entry. Hide the balances, profit and loss figures, and histories prohibited by Clause 6.4, including simulated figures. Do not display login credentials, authentication codes, account identifiers, payment details, personal correspondence, or another person's personal information. Explain order types, position sizing, or risk controls without real-time recommendations or suggested trades. Do not remove required product or rights attribution when redacting private information.
- 6.11. **Additional materials.** Unless specifically cleared in the Competition Guidelines, do not include another author's ideas, publications or recordings, third-party news content, private or paid scripts, exposed source code, or unrelated advertisements and communications. Disclose any additional music, images, fonts, indicators or other Third-Party Materials under Clause 4.1 and retain evidence of the relevant permissions. Access to an item, payment for it, public availability, or attribution does not by itself establish the rights needed for Deriv's proposed reuse. Do not demonstrate extraction, redistribution, or automated exploitation of data as part of this Competition.

7. Judging

- 7.1. **Panel.** Entries that meet the compliance requirements will be judged by the Panel. AI tools may assist with translation, transcription, and administrative checks but will not score Entries or select the winners.
- 7.2. **Eligibility and compliance check.** Before scoring, Deriv will verify eligibility under Clause 3, valid submission under Clause 4, the content requirements under Clause 5, compliance with Clause 6, and the permissions and declarations under Clause 9. These checks are conducted on a pass-or-fail basis. Deriv may request clarification or evidence under a procedure applied consistently to all Entrants; substantive changes after the Submission Deadline are permitted only under a correction process published in advance or a generally applicable extension under Clause 12. An Entry that fails either check will not be scored and cannot win.

- 7.3. **Criteria.** Each Entry that passes the eligibility and compliance checks will be scored against the Rubric in Schedule 2. The Panel will not assess an Entry against any criterion or weighting that is not set out in the Rubric.
- 7.4. **Process.** Each Panel member will score the Entries independently before any group discussion. The scores will then be reviewed and moderated by the Panel.
- 7.5. **No performance metrics.** Views, likes, comments, subscriber numbers, clicks, registrations, deposits, and trading volume will not be scored or otherwise affect the result. The Competition rewards the quality of the content, not the size of the Entrant's audience.
- 7.6. **Conflicts of interest.** A Panel member who manages or has previously managed an Entrant's Partner account, or who has any other personal or commercial interest in an Entrant, must disclose the conflict and take no part in judging that Entrant's Entries.
- 7.7. **Final decisions.** Winners will be selected at Deriv's discretion in accordance with this Clause 7. The Panel's decision is final. Deriv will not enter into correspondence about individual scores and is not required to provide feedback or disclose scores. Nothing in this Clause limits any right that cannot lawfully be excluded.

8. Prizes

- 8.1. The total prize pool is USD 5,000, distributed across nine prizes as set out in the Competition Page.
- 8.2. Prizes are stated in USD and will be paid in USD or its equivalent.
- 8.3. An Entrant may receive only one prize. If an Entrant qualifies for more than one prize, they will receive the prize with the highest value. If the prizes have the same value, Deriv will decide which prize the Entrant receives. Each other prize will pass to the next-highest-scoring eligible Entry in the relevant category.
- 8.4. Deriv may award fewer prizes than those listed, or no prize in a category, if there are too few eligible Entries or no Entry meets the minimum standard set by the Panel. Unawarded prize money will not be redistributed unless Deriv decides otherwise.
- 8.5. A prize will be credited to the winner's Deriv Partner commission account within 15 working days after the Winner Announcement Date.
- 8.6. Deriv will not award or pay a prize to a person, or into a territory, if doing so would breach sanctions, anti-money-laundering requirements, or any other applicable law or regulation.
- 8.7. The right to receive a prize cannot be transferred or assigned, and no alternative form of prize is available.
- 8.8. Each winner is responsible for any tax, levy, reporting requirement, or other liability arising from their prize. Deriv may make any deduction or withholding required by law.
- 8.9. Deriv may withhold a prize, or recover a prize already paid, if it later establishes that the Entrant or Entry breached these terms.

9. Intellectual property

- 9.1. An Entrant retains ownership of their Video, subject to any rights held by Deriv, TradingView, or another third party in any trademarks, logos, branding, interfaces, or other material appearing in the Video.
- 9.2. By submitting an Entry and accepting these terms, the Entrant grants Deriv and its group companies a worldwide, perpetual, irrevocable, royalty-free, and non-exclusive licence over the rights the Entrant owns or is authorised to license in the Video. The licence permits reproduction, editing, adaptation, translation, subtitling, excerpting, publication, distribution, and display for Deriv's marketing, advertising, promotional, educational, training, and internal purposes, including its YouTube and social channels, websites, Partner App, and Partners Academy.
- 9.3. Deriv may transfer or sublicense those rights only to group companies, service providers, distribution platforms, and other recipients as reasonably necessary for those purposes. Each onward use remains subject to the limits in this Clause. The licence does not transfer ownership of the Video, and the Entrant remains free to use and license their own work.
- 9.4. Third-Party Materials remain subject to their owners' rights and the permissions applicable to them. Neither the Entrant's licence nor its duration, transferability, or sub-licensability expands those permissions. Deriv may use Third-Party Materials only to the extent and for the period independently permitted by the rights-holder or validly licensed through the Entrant. Approved Platform Materials are governed by the clearance recorded in the Competition Guidelines. Other material with insufficient reuse rights must be removed, replaced or separately cleared before the affected reuse.

Deriv must preserve required attribution, relevant disclosures, and the meaning of the Entrant's statements when making edits or extracts. It must not create a misleading testimonial, performance claim, or implication of endorsement. Each edited version must comply with the requirements applicable to its intended channel and audience. Where relevant permission expires or a valid removal obligation applies, affected use must cease or be amended under Clause 6.8.

The licence over the Entrant's own rights survives the end of the Competition and removal of the Video by the Entrant, subject to rights that cannot lawfully be waived. To the extent permitted by applicable law, the Entrant waives their own moral rights solely as necessary for the uses permitted by this Clause; where a waiver is unavailable but consent is permitted, the Entrant consents to those uses. This does not affect another person's rights. Deriv will credit the Entrant where reasonably practicable and where required by applicable law.

- 9.5. Each Entrant warrants that:
 - 9.5.1. Their original contribution to the Video is their own work, and they are entitled to grant the licence in Clause 9.2;
 - 9.5.2. Third-Party Materials have been identified as required by Clause 4.1 and are used within the relevant permissions; for materials other than Approved Platform Materials, those permissions cover the proposed reuse under Clause 9.2 or the material has been expressly accepted by Deriv on disclosed, more limited terms before submission is completed;

9.5.3. Every identifiable person appearing or heard has given any permission required for the appearance and the uses specified in Clause 9.2; and

9.5.4. Their creation, submission, and publication of the Video comply with applicable law and these terms.

For Approved Platform Materials, the Entrant is responsible for following the notified clearance conditions, but does not warrant ownership of those materials or promise rights beyond that clearance. Deriv is responsible for establishing the clearance it represents as obtained. The Entrant must provide reasonable supporting evidence on request.

9.6. Where a Video contains AI-generated or AI-assisted material, the Entrant must clearly disclose this in the Video caption or description before submitting the Entry. No separate AI declaration is required through the Submission Channel. Failure to disclose such material, or the use of a synthetic depiction of a real person, may result in disqualification.

A winner agrees that Deriv may publish their name, channel name, country or region, and Video when announcing the results and in subsequent marketing, without further payment.

9.7.

9.8. Deriv may invite a winner to participate in an interview or case study. Participation is voluntary and is not a condition of receiving a prize. A winner who participates grants Deriv the licence set out in Clause 9.2 for the resulting recording and materials.

10. Personal data

10.1. By participating in this Competition, Entrants acknowledge and agree that Deriv will collect and process their personal data for the purposes of administering the Competition, including (but not limited to) verifying eligibility and fulfilling related obligations. All collection, processing, sharing, and retention of personal data associated with this Competition is governed by Deriv's [Privacy Policy](#). Please refer to this Privacy Policy for information on how Deriv handles personal data and how Entrants may exercise their applicable data protection rights.

11. Disqualification

11.1. Deriv may disqualify an Entry or Entrant for:

11.1.1. Breaching any part of Clause 6;

11.1.2. Providing false, misleading, or incomplete information through the Submission Channel or during an eligibility check;

11.1.3. Purchasing, incentivising, automating, or otherwise generating inauthentic views, likes, comments, or subscribers;

- 11.1.4. Plagiarism or using another person's work without the necessary rights;
 - 11.1.5. Failing to disclose AI-generated material or using a synthetic depiction of a real person;
 - 11.1.6. Publishing the Video before the Start Date or removing the Video before the period in Clause 5.6 expires, except as permitted by that Clause;
 - 11.1.7. Directing an Entry at persons under 18 or audiences in a territory excluded under Clause 3.3;
 - 11.1.8. Submitting an Entry jointly, through another person's account, or on behalf of another person;
 - 11.1.9. Coordinating with another Entrant or Deriv personnel to improperly influence the result;
 - 11.1.10. Breaching the Deriv [Business Partners' Terms](#) or the applicable terms or policies of YouTube, TradingView, or another publishing platform; or
 - 11.1.11. Engaging in conduct that, in Deriv's reasonable opinion, brings the Competition or Deriv into disrepute.
- 11.2. A disqualified Entry will not be scored and cannot win. Any prize connected with that Entry may be withheld, forfeited, or recovered. Deriv may also exclude the Entrant from future competitions and take action under the Deriv [Business Partners' Terms](#).

12. Changes, suspension, and cancellation

- 12.1. Deriv may amend these terms where necessary to correct an error, comply with a law or regulation, protect third-party rights, or address circumstances outside its control. Deriv will publish any material change on the Competition Page and notify affected Entrants. Where appropriate, Deriv may require Entrants to accept materially revised terms before submitting an additional Entry or continuing in the Competition. Deriv will date and version any change to these terms or the Competition Guidelines and explain its effect on existing Entries. Material expansions of the licence over an existing Entry require the Entrant's express agreement. A policy or permission change may require use to stop, but does not retrospectively turn conduct that complied with the applicable requirements when undertaken into a breach by the Entrant. Necessary remediation and takedown obligations remain applicable.
- 12.2. Deriv may suspend, shorten, extend, or cancel the Competition if circumstances outside its reasonable control make it impractical to conduct the Competition as described. Deriv will not do so to avoid awarding a prize that has been properly earned.

13. Limitation of liability

- 13.1. Nothing in these terms excludes or limits any liability that cannot lawfully be excluded or limited, including liability for death or personal injury caused by negligence, or for fraud.
- 13.2. Subject to Clause 13.1, Deriv is not liable for an Entry that is lost, delayed, or corrupted in transmission; a failure of the Partner App or the Submission Channel; a platform outage or change; any act or omission of YouTube,

TradingView, or another third-party platform; any loss of profit, revenue, goodwill, or opportunity; or any indirect or consequential loss.

- 13.3. Subject to Clause 13.1, Deriv's total liability to an Entrant in connection with the Competition is limited to the value of the highest single prize.

14. Relationship with the Business Partners' Terms

- 14.1. These terms supplement the Deriv [Business Partners' Terms](#). If the two conflict in relation to the Competition, these terms prevail. The Deriv Business Partners' Terms prevails in relation to all other matters.
- 14.2. Nothing in these terms creates an employment, agency, partnership, or joint-venture relationship between Deriv and an Entrant, or authorises an Entrant to act on Deriv's behalf beyond the authority granted under the Deriv [Business Partners' Terms](#).
- 14.3. Prize money is not commission and does not form part of an Entrant's remuneration under the Deriv [Business Partners' Terms](#).

15. Third-party platforms and trademarks

- 15.1. The Competition is not sponsored, endorsed, or administered by YouTube or Google, and neither company is associated with its administration. Each Entrant must comply with YouTube's [Terms of Service](#) and [Community Guidelines](#). To the fullest extent permitted by law, each Entrant releases YouTube from any liability arising from or connected with the Competition.
- 15.2. TradingView is a trademark of its owner and is referred to in these terms for identification purposes. The Competition is not sponsored, endorsed, or administered by TradingView. Nothing in an Entry or Competition material may suggest otherwise.
- 15.3. An Entrant must not register or use a domain name, channel name, social-media handle, or other identifier that incorporates Deriv's or TradingView's trademarks.

16. General

- 16.1. If any provision of these terms is held to be invalid or unenforceable, the remaining provisions will continue in force.
- 16.2. A failure or delay by Deriv in enforcing any provision does not waive its right to enforce that or any other provision.

- 16.3. These terms, the Competition Guidelines and the information on the Competition Page expressly incorporated into these terms form the agreement concerning the Competition. These terms prevail over inconsistent campaign copy or guidelines; the Competition Page supplies the dates and prize details expressly referred to in these terms. None of those materials overrides applicable law or a third party's rights or extends a permission beyond its scope. An informal response from Amy or another communication channel does not amend these terms or grant additional rights.
- 16.4. If these terms are translated, the original English version will prevail.
- 16.5. Except for YouTube's right to rely on and enforce the release in Clause 15.1, no person other than Deriv and an Entrant may enforce these terms.

17. Governing law

- 17.1. These terms are governed by the laws of Samoa. The courts of Samoa have exclusive jurisdiction over any dispute arising from or connected with the Competition or these terms.

18. Contact

- 18.1. Questions about the Competition may be submitted through Amy in the Partner App. Deriv will not answer questions about individual scores, as stated in Clause 7.7.

Schedule 1 - Restricted Territories

Afghanistan, Alderney, American Samoa, Australia, Belarus, Bouvet Island, Brazil, British Virgin Islands, Cambodia, Canada, Cayman Islands, Cuba, French Southern Territories, Gabon, Ghana, Guernsey, Heard Island and McDonald Islands, Hong Kong, India, Indonesia, Iran, Isle of Man, Jersey, Jordan, Kenya, Kosovo, Malaysia, Mauritius, Myanmar, New Zealand, Nigeria, North Korea, Northern Mariana Islands, Pakistan, Paraguay, Philippines, Puerto Rico, Rwanda, Saint Kitts and Nevis, Samoa, Senegal, Singapore, South Africa, South Georgia and the South Sandwich Islands, Saint Vincent and the Grenadines, Switzerland, Syria, Tanzania, Thailand, Tokelau, Trinidad and Tobago, Turkey, Ukraine, United States, United States Minor Outlying Islands, United States territories, United States Virgin Islands, Uzbekistan, Vanuatu, and Venezuela.

Schedule 2 - Judging rubric

Compliance is a pass or fail gate under clause 7.2 and is not scored. An Entry that passes is scored out of 10 on each criterion below, and the criteria are weighted as shown.

CRITERION	WEIGHT	WHAT THE PANEL ASSESSES
Product accuracy and demonstration	25%	Is what the Video says about Deriv and TradingView correct, and is the tool shown working rather than described?
Educational clarity and usefulness	25%	Would a viewer who had never seen the product be able to do the thing afterwards?
Craft and production quality	20%	Audio intelligible, visuals legible, pacing controlled.
Originality and audience fit	20%	Is the angle the Entrant's own, and does it suit the audience they are speaking to?
Reusability by Deriv	10%	How useful and adaptable is the compliant Video for the purposes in Clause 9.2, within the rights confirmed at the pass-or-fail check? Consider clarity, production quality and ease of making compliant extracts. The Panel must not assume unrestricted rights over Third-Party Materials.
Total	100%	Weighted score out of 100.

Schedule 3 - Mandatory risk warning

Every Video must carry the following wording, both on screen and in the video description, as required by clauses 5.7 and 6.1.

“Trading is risky. This is not investment advice.”

The risk warning must remain separate from the Partner/competition disclosure and any TradingView attribution. One does not replace another. Where a Video is translated or reused as an extract, retain the warnings and disclosures applicable to that version in a form its intended audience can understand.

Suggested Partner disclosure for the guidelines:

“I am a Deriv Partner. This video is an entry in the Deriv Content Creators Challenge, in which I may win a prize.”

Add the approved affiliate-remuneration disclosure if a referral link is used, together with any platform label required for that publication. This disclosure must appear on screen and within the first two description lines as already required by Clause 6.6.

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